

Form No: HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

W.P.No.14609/2019

Mubarak Mai etc. Versus ADJ, Khanewal etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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30.09.2019 Mr. Muhammad Sohail Rashid, Advocate for the
petitioners.

Through this constitution petition, the petitioners have called in question order dated 10.03.2017 passed by the learned Civil Judge, Khanewal, whereby in a suit for declaration filed by the petitioners, their application for interim injunction under Order 39 Rule 1 & 2 CPC was dismissed and judgment dated 02.08.2019 passed by learned Additional District Judge, Khanewal whereby appeal filed by the present petitioners against the aforesaid order was dismissed. It is contended by learned counsel for the petitioners that both the afore-referred order and judgment are against the facts of the case and law on the subject, consequently these are liable to be set aside and as the petitioners have got strong prima facie arguable case in their favour, therefore, application for interim injunction may be allowed.

2. It is observed that claim of the petitioners is that the suit property was in possession of their predecessor in interest namely Muhammad Nawaz S/o Allah Ditta

(deceased) as tenant who was to be allotted the suit property as per government scheme but instead the same was allotted to Allah Ditta S/o Wali Dad who was father of the said Muhammad Nawaz and the said allotment be set aside and property be allotted in the name of Muhammad Nawaz predecessor in interest of the petitioners. Alongwith the said suit an application for interim injunction was also filed by the present petitioner seeking direction against the private respondents not to interfere in the possession of the petitioners.

3. On the other hand, the private respondents as well as Province of Punjab contested the suit and as per the version of the respondent-Province of the Punjab subject property vested in the Province of Punjab and the petitioners do not have any claim for the same, whereas the remaining respondents claim that the suit property was rightly allotted to Allah Ditta predecessor in interest of both the parties.

4. The property is joint between the parties and was originally allotted to Allah Ditta who is predecessor in interest of both the parties, and the petitioners could not show any document in their favour to establish beyond doubt their version relating to the claim of the petitioner that property was required to be allotted to Muhammad Nawaz instead of Allah Ditta predecessor in interest of the parties and their stance is required to be proved through recording of evidence. Where evidence is to be recorded

to substantiate the claim, prima facie case cannot be presumed. Besides the petitioners have failed to prove that balance of convenience lies in their favour and as to how they would suffer irreparable loss if stay is not granted in their favour, especially when the suit property is owned jointly by the parties as legal heirs of Allah Ditta and not exclusively owned by them in the record. In these circumstances, when ingredients for grant of temporary injunction were missing, the concurrent decisions of learned Courts below do not suffer from any illegality or jurisdictional defect. Consequently both the Courts below were justified in declining the application of the petitioner for interim relief and order and judgment passed by them are well founded which warrants no interference by this Court, hence the instant writ petition is **dismissed**.

(Muzamil Akhtar Shabir)
Judge

WaqaR